

Court No. - 3

Case :- WRIT - C No. - 62777 of 2015

Petitioner :- M/S Abhinav Steels Ltd.

Respondent :- Purvanchal Vidyut Vitaran Nigam Ktd. & 2 Others

Counsel for Petitioner :- Alope Kumar

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Arvind Kumar Mishra-I,J.

Put up day after tomorrow i.e. 09.12.2015.

Learned counsel for the petitioner shall inform the learned counsel appearing for Power Corporation about the order passed today, in writing.

Order Date :- 7.12.2015

IrfanUddin

Court No. - 3

Case :- WRIT - C No. - 62777 of 2015

Petitioner :- M/S Abhinav Steels Ltd.

Respondent :- Purvanchal Vidyut Vitaran Nigam Ktd. & 2 Others

Counsel for Petitioner :- Alope Kumar

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Raghvendra Kumar,J.

Shri Aadarsh Bhushan has put in appearance on behalf of respondents.

On the joint request made by the learned counsel for the parties, put up on 14.12.2015.

Order Date :- 9.12.2015

SFH

Court No. - 3

Case :- WRIT - C No. - 62777 of 2015

Petitioner :- M/S Abhinav Steels Ltd.

Respondent :- Purvanchal Vidyut Vitaran Nigam Ktd. & 2 Others

Counsel for Petitioner :- Alope Kumar

Counsel for Respondent :- Mahboob Ahmad, Adarsh Bhushan

Hon'ble Krishna Murari, J.

Hon'ble Anil Kumar, J.

Sri Mohboob Ahmad, learned counsel for respondents prays for and is allowed three weeks' time to file a counter affidavit to the writ petition as well as supplementary affidavit.

Rejoinder affidavit, if any, may be filed within ten days thereafter.

Put up in the additional cause list on 18.01.2016.

Order Date :- 14.12.2015

Ravi/-

Court No. - 34

Case :- WRIT - C No. - 62777 of 2015

Petitioner :- M/S Abhinav Steels Ltd.

Respondent :- Purvanchal Vidyut Vitaran Nigam Ktd. & 2 Others

Counsel for Petitioner :- Alope Kumar

Counsel for Respondent :- Mahboob Ahmad, Adarsh Bhushan

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

As prayed, list in the next cause list.

Order Date :- 21.11.2017

S. Thakur

Court No. - 34

Case :- WRIT - C No. - 62777 of 2015

Petitioner :- M/S Abhinav Steels Ltd.

Respondent :- Purvanchal Vidyut Vitaran Nigam Ktd. & 2 Others

Counsel for Petitioner :- Alope Kumar

Counsel for Respondent :- Mahboob Ahmad, Adarsh Bhushan

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Rejoinder affidavit filed on behalf of petitioner is taken on record.
2. As prayed, list on 04.12.2017.

Order Date :- 30.11.2017

IrfanUddin

Court No. - 34

Case :- WRIT - C No. - 62777 of 2015

Petitioner :- M/S Abhinav Steels Ltd.

Respondent :- Purvanchal Vidyut Vitaran Nigam Ktd. & 2
Others

Counsel for Petitioner :- Alope Kumar

Counsel for Respondent :- Mahboob Ahmad, Adarsh Bhushan

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

As prayed, list in the next cause list.

Order Date :- 4.12.2017

S. Thakur

Court No. - 34

Case :- WRIT - C No. - 62777 of 2015

Petitioner :- M/S Abhinav Steels Ltd.

Respondent :- Purvanchal Vidyut Vitaran Nigam Ktd. & 2 Others

Counsel for Petitioner :- Alope Kumar

Counsel for Respondent :- Mahboob Ahmad, Adarsh Bhushan

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Cases of Sri Mahboob Ahmad, learned counsel for respondents are reported to be adjourned till 21.12.2017.

2. List on 22.12.2017.

Order Date :- 13.12.2017

AK

Court No. - 34

Case :- WRIT - C No. - 62777 of 2015

Petitioner :- M/S Abhinav Steels Ltd.

Respondent :- Purvanchal Vidyut Vitaran Nigam Ktd. & 2 Others

Counsel for Petitioner :- Alope Kumar

Counsel for Respondent :- Mahboob Ahmad, Adarsh Bhushan

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Cases of Sri Mahboob Ahmad, learned counsel for respondents are reported to be adjourned till 03.01.2018.
2. Sri Alope Kumar, learned counsel for petitioner, requested that this matter may be listed after 09.01.2018.
3. List on 15.01.2018.

Order Date :- 22.12.2017

AK

Court No. - 34

Case :- WRIT - C No. - 62777 of 2015

Petitioner :- M/S Abhinav Steels Ltd.

Respondent :- Purvanchal Vidyut Vitaran Nigam Ltd. and others

Counsel for Petitioner :- Alope Kumar

Counsel for Respondent :- Mahboob Ahmad, Adarsh Bhushan,
Ravi Anand Agarwal

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

1. After some argument, Sri Alok Kumar, learned counsel for petitioner, could not dispute that petitioner has a statutory alternative remedy of disputing electricity bills issued by respondent-Corporation demanding electricity charges, by raising dispute before District Redressal Forum under Clause 6.5 of Electricity Supply Code, 2005 and in case petitioner does not get full relief therein, still he has further remedy before Ombudsman.
2. In view thereof, we do not find that dispute relating to electricity charges should be entertained in extraordinary jurisdiction under Article 226 since petitioner has a statutory alternative remedy and, therefore, must be relegated to avail the same.
3. The writ petition is, accordingly, dismissed on the ground of alternative remedy.
4. Sri Ravi Anand Agarwal, Advocate, is present for respondents.

Order Date :- 6.3.2018

PS